

25LBCV01635 25LBCV01635

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-07-30

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BACKGROUND

On June

2, 2025, Plaintiff commenced this action against Defendants Volkswagen Group of America, Inc. and Timmons Volkswagen of Long Beach ("Defendant").

On June

4, 2026, Defendant Timmons filed the instant Motion for Judgment on the Pleadings.

On July 17, 2026, Plaintiff filed an opposition.

As of July 27, 2026, Defendant has not filed a reply.

DISCUSSION

Applicable

Law

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) The Court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)

Analysis

A.

Economic

Loss Rule

The Economic Loss Rule is not necessarily revealed as to allegedly negligent repair, depending on the particular allegations. (See, e.g., Rattagan v. Uber Techs., Inc. (2024) 17 Cal.5th 1, 44 [“The doctrine does not apply if defendant’s breach caused physical damage or personal injury beyond the economic losses caused by the contractual breach and defendant violated a duty flowing, not from the contract, but from a separate, legally recognized tort obligation.”]; North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 785, 787 [to avoid the economic-loss rule’s bar of damages for tort claims, plaintiffs can be non-contracting parties, contracting parties showing property damage, or contracting parties for services as distinguished from products]; Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 636 [“Purely economic losses, e.g., the cost to repair or replace the defective product, are recoverable only under contract or warranty law.”].) Further, the Economic Loss Rule is not a complete defense, but instead relates to the damage element of a tort cause of action. (Greystone Homes, Inc. v. Midtec, Inc. (2008) 168 Cal.App.4th 1194, 1215.)

First, Defendant argues that

Plaintiff’s negligent repair claim is barred by the economic loss rule because Plaintiff’s damages consist solely of alleged economic losses, and the Complaint fails to allege facts establishing that Plaintiff suffered any cognizable personal injury or recoverable damages.

Plaintiff argues that California

decisional law has long recognized that the economic loss rule does not necessarily bar recovery in tort for damage that a defective product (e.g., a window) causes to other portions of a larger product (e.g., a house) into which the former has been incorporated, citing *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483-84.

Here, the Negligent Repair claim fails to go beyond economic losses under warranty contracting or law into other aspects, such as negligently storing the vehicle, which would not be within the scope of the warranty repair document. While Plaintiff argues that there is a component exception from the economic loss rule under *Jimenez*, the Complaint makes no mention of negligently repaired subcomponents of the vehicle causing damage to a larger component or that the component caused damage to the vehicle into which it has been incorporated. There is no basis for Plaintiff to invoke this exception based on the face of the Complaint. Thus, Plaintiff's negligent repair claim is barred by the economic loss rule as it is currently plead.

Therefore, Defendant's Motion for Judgment on the Pleadings is GRANTED on this ground. Leave to amend is discussed below.

B.
Failure
to State Sufficient Facts

Defendant argues that allegations related to Plaintiff's cause of action for Negligent Repair merely state legal conclusions (i.e., Dealer owed a duty, Dealer breached its duty, etc.), without providing any supporting facts – either general or specific – sufficient to constitute a cause of action. (See Complaint, ¶¶ 46-50; see also *Blank v. Kirwan* (1985) 39 Cal.3d 312, 318 [“In reviewing the sufficiency of a complaint against a general demurrer . . . '[w]e treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusion of fact or law”].) Defendant contends that Plaintiff fails to assert what damages they are seeking with respect to the negligence cause of action.

Plaintiff argues that the complaint contains the requisite elements and is sufficient to put Defendants

on notice that Timmons is facing suit for negligent repair of a particular car owned by Plaintiff.

Here, the Court finds that

Plaintiff's Negligent Repair claim consists of bare legal conclusions rather than any factual allegations. The claim consists of five sentences: "Plaintiff incorporates by reference the allegations contained in the paragraphs set forth above. Plaintiff delivered the Subject Vehicle to Defendant TIMMONS for substantial repair on at least one occasion. Defendant TIMMONS owed a duty to Plaintiff to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle in accordance with industry standards. Defendant TIMMONS breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards. Defendant TIMMONS's negligent breach of its duties owed to Plaintiff was a proximate cause of Plaintiff's damages." (Complaint, ¶¶ 46-50.) Plaintiff fails to allege repair dates, or even what components were negligently repaired. These legal conclusions are insufficient to state a cause of action at this stage.

Thus, Defendant's Motion for Judgment on the Pleadings is GRANTED on this ground. Leave to amend is discussed below.

Leave to Amend

Leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Ibid.) Where a pleading is successfully challenged on demurrer, "[t]he plaintiff has the burden of proving that an amendment would cure the defect." (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081.)

Plaintiff does

not request leave to amend or make any effort to state what amendments could be made to cure the identified defects. However, as leave to amend should be granted whenever there is a reasonable possibility of successful amendment, the Court is prepared to grant it upon the proper showing. At the hearing, Plaintiff must be prepared to explain in further detail what additional facts she will plead and exactly how she can

amend to remedy the deficiencies in the Complaint without making it a sham pleading. The Court will decide at the hearing whether to grant leave to file a First Amended Complaint.

Conference Before Amended

Pleading or Motion for Judgment on Amended Pleading

"If

a court grants a motion for judgment on the pleadings and grants leave to amend, the court may order a conference of the parties before an amended pleading, or a motion for judgment on an amended pleading, may be filed. If the conference is held, the court shall not preclude a party from filing a motion for judgment on the pleadings and the time to file a motion for judgment on the pleadings shall not begin until after the conference has concluded." (CCP § 439, subd. (c)(1).)

The Court, if it chooses to grant leave to amend, may also order the parties to confer before filing another motion for judgment on the pleadings as to a first-amended complaint.

CONCLUSION

Defendant Timmons Volkswagen of Long Beach's Motion for Judgment on the Pleadings is GRANTED as to the fifth cause of action for negligent repair.

Leave to amend is conditioned on Plaintiff making the requisite showing at the hearing.

Moving party to give notice.